

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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RONALD PEASTER,

Plaintiff,

-against-

THE CITY OF NEW YORK,
POLICE OFFICER PENA
POLICE OFFICER BARTEK
POLICE OFFICER JOY SPRUILL, and
POLICE OFFICERS "JOHN DOES",
(whose names and shield #'s are unknown),

Defendants.
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Index No.

COMPLAINT **GARAUFIS, J.**

JURY DEMAND **REYES, M.J.**

FILED **ST** **ST**
IN CLERK'S OFFICE
U.S. DISTRICT COURT E.D.N.Y.

★ **MAY 24 2007** ★

BROOKLYN OFFICE

Plaintiff, by his attorney, Philip Akakwam, Esq., complaining of the defendants, The City of New York, and Police Officers Pena, Bartek, Joy Spruill, and Police Officers "John Does", upon information and belief alleges as follows:

INTRODUCTION

1. This is an action at law to redress the deprivation under color of statute, ordinance, regulation, custom, or usage of rights, privileges, and immunities secured to the plaintiff by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States, and by Title 42 U.S.C. § 1983 [and § 1985].

2. The Plaintiff seeks monetary damages for: the false arrest, false imprisonment, detention, and malicious prosecution of Plaintiff, Ronald Peaster, and for the use of excessive and unnecessary force against said plaintiff, and for subjecting said plaintiff to malicious abuse of criminal process, and otherwise, for the violation of the Plaintiff's federally guaranteed constitutional and civil rights. The Plaintiff seeks whatever other relief is appropriate and

necessary in order to serve the interest of justice and assure that his remedy is full and complete.

JURISDICTION

3. The jurisdiction of this Court is invoked pursuant to and under 28 U.S.C. Sections 1331 and 1343[3] and [4] in conjunction with the Civil Rights Act of 1871, 42 U.S.C. Section 1983, and under the Fourth and Fourteenth Amendments to the United States Constitution.

4. The Plaintiff also invokes the jurisdiction of this Court in conjunction with the Declaratory Judgment Act, 28 U.S.C. Sections 2201, et seq., this being an action in which the Plaintiff, while seeking monetary damages, also seeks declaratory and injunctive relief if such is deemed necessary and desirable and in the interest of justice in order to provide the Plaintiff with a full and complete remedy for the violation of his rights.

PARTIES

5. The Plaintiff, a black male of full age, is a resident of the City of New York, County of Kings and State of New York.

6. The City of New York is a municipal entity existing under the laws and Constitution of the State of New York and was the employer of the defendant police officers through its Police Department - New York City Police Department- and the actions of the police officers complained of herein were done as part of the custom, practice, usage, regulation and/or direction of the City of New York.

7. At all times herein, individual defendants Police Officers Pena, Bartek, Joy Spruill, and "John Does" were employed as police officers of the City of New York, State of New York, and were acting under the color of their official capacity and their acts were performed under color of the statutes and ordinances of the City of New York and the State of New York. The

defendant Police Officers were the servants, agents, and employees of their co-defendant, the City of New York. Notwithstanding the wrongful and illegal nature of their acts and conduct as hereinafter described, they were taken in and during the course of their duties and functions as New York City Police Officers and incidental to the otherwise lawful performance of the same.

8. All conditions precedent to filing of this action have been complied with; on December 18, 2006, within ninety days after the claim alleged in this complaint arose, a written notice of claim, sworn to by the plaintiff, was served upon the defendant City of New York by personal delivery of the notice in duplicate, to the person designated by law as one to whom a summons issued against such party may be delivered in an action in the Supreme Court. Plaintiff's claim was given Claim No. 2007PI002211.

9. At least thirty days have elapsed since the service of the notice of claim, and adjustment or payment of the claim has been neglected or refused.

10. This action has been commenced within one year and ninety days after the happening of the event upon which the claim is based.

FACTS COMMON TO CAUSES OF ACTION

11. On or about October 12, 2006, at approximately 2:30 p.m., the individual defendant Police Officers were on duty and were acting within the scope of their authority as police officers for the defendant City of New York and in furtherance of the business of the City of New York.

12. On the date aforesaid, plaintiff had gone to visit a friend who lived on Halsey Street and when he did not find his friend, he got back into his car and was about to drive off when police officers in an unmarked vehicle stopped beside his vehicle.

13. Some officers jumped out of the car and ran towards plaintiff's car while plaintiff was still sitting in his car. One of the officers yelled at plaintiff to get out of his car.

14. When plaintiff asked why he was being asked to get out of his car, the officer yelled "get the fuck" out of the car and he sprayed mace into plaintiff's face and eyes while plaintiff was still seated in the car.

15. Then the officer opened the car door and unbuckled plaintiff's seat belt, pulled him out of the car and kicked him on the lower back causing him to stumble. Plaintiff again asked what he had done, but the officer told him to shut up.

16. All this while, another officer was standing by the side with his gun drawn and pointed at plaintiff, as a third officer (a female) was standing by the side watching.

17. The officer that had pulled plaintiff out of the car threw him to the ground and had his knee pressed hard on plaintiff's back. When plaintiff asked again what he had done, the officer hit plaintiff's face to the ground. At this time, plaintiff was already suffering severe irritation in his eyes as a result of the mace.

18. The officers searched plaintiff's car ripping apart several parts of the car. They damaged the dashboard, broke the air conditioner vent, ripped apart the stereo speakers, and damaged the electrical wiring in the car.

19. Plaintiff was handcuffed and thrown into a vehicle. Then plaintiff heard one of the officers claim that he found some marijuana on the street and that it belonged to plaintiff. But plaintiff told the officers that he did not have any marijuana or other contraband on his person or in his car.

20. Thereafter plaintiff was transported to the 83rd Police Precinct. At the Precinct, one of the police officers slashed plaintiff's pants with a blade in such a manner that plaintiff was scared for his safety.

21. Plaintiff was strip-searched, fingerprinted, photographed and thrown into the police cell.

22. Plaintiff complained that the irritation in his eyes had become unbearable from the mace that had been sprayed into his eyes. Plaintiff cried and complained repeatedly for hours before he was allowed to wash his face with water.

23. At the precinct, plaintiff advised the officers that he was supposed to pick up his daughter from school at 5:30 PM, and he gave the officers a number to call so that somebody could pick up his daughter.

24. After waiting for long without hearing from the officers about his daughter, plaintiff continued to plead with anyone around about picking up his daughter until about 6:30 PM when a female employee intervened by bringing the officers back to plaintiff to hear his concerns about his daughter.

25. The officers claimed that they had called plaintiff's home and no one answered. Plaintiff gave them another telephone number to call so that his daughter could be picked up. Eventually, plaintiff's daughter was picked up at about 7:30 PM instead of 5:30 PM. One of her teachers had to stay back with her until she was picked up.

26. Plaintiff was taken to Central Booking at about 1:00 AM the following morning October 13, 2006, but did not appear before a judge until about 5:30 p.m.

27. Plaintiff was falsely charged with criminal possession of marihuana in the fifth degree under PL221.10(1) and unlawful possession of marihuana under PL 221.05. On December 19, 2006, all of the criminal charges and offenses preferred against plaintiff were dismissed.

28. As a direct result of the unlawful conduct of the defendants' complained of herein, plaintiff, who is a student at Medgar Evers College, Brooklyn, missed a test scheduled for October 13, 2006 in one of his courses.

29. At the time of his arrest and detention, plaintiff was lawfully on a public street for a lawful purpose. Plaintiff did not engage in any conduct which would justify a police intrusion on his right to be present on a public street at about 2:30 p.m.

30. Before and at the time plaintiff was unlawfully approached, seized, and searched by the police, he had not been engaging in any suspicious or unlawful conduct. Therefore, his warrantless seizure by the police was completely unjustified, in that it was made without reasonable suspicion or probable cause.

31. The arrest of plaintiff was made without a warrant and without probable cause, and there was absolutely no justification for the preferral of charges against him.

32. Plaintiff was falsely arrested, maliciously prosecuted, subjected to malicious abuse of criminal process, assaulted, battered, subjected to excessive and unnecessary force.

33. Plaintiff suffered physical injuries, including injury to his wrist, eyes and sight. Moreover, plaintiff suffered emotional distress and mental anguish and psychological trauma as a consequence of the assault, battery, unnecessary and excessive force, and as a result of his arrest and as a direct consequence of criminal charges which were preferred against him.

34. The Plaintiff suffered violations of his federally guaranteed constitutional and civil rights including rights guaranteed to him under the Fourth and Fourteenth Amendments to the United States Constitution and the Civil Rights Act of 1871, 42 U.S.C. Section 1983.

35. The actions taken against plaintiff by the defendant Officers herein were propelled by a policy and practice of the City of New York which promotes an "ends justifies the means" philosophy of combating crime including "quality of life" offenses, which causes Officers to stop and frisk and/or arrest individuals, particularly blacks, without probable cause and to subject those individuals to false criminal charges and other kinds of charges and to subject those individuals to malicious prosecution, malicious investigation, malicious abuse of criminal process, and to excessive force, assault and battery. The said policy and practice falls disproportionately on persons of color.

36. These policies and practices violate the rights of the Plaintiff under federal law including the Fourth and Fourteenth Amendments to the United States Constitution and the Civil Rights Act of 1871, 42 U.S.C. Section 1983.

37. The policies and practices complained of herein also violate the rights of Plaintiff under the Constitution and laws of the City and State of New York.

38. The actions and conduct of the Officers and the policies and practices of the City of New York were negligent and the proximate cause of damages to the Plaintiff.

39. The Defendant Officers acted together and in concert sanctioning and ratifying and otherwise condoning the wrongful actions being taken by each of the defendant Officers in a collective manner and fashion.

40. The Plaintiff has no other adequate remedy at law but for this action.

FIRST CAUSE OF ACTION

41. Plaintiff reiterates paragraphs 1 through 40 and incorporate such by reference herein.

42. The actions and conduct of the Defendant Officers violated the Plaintiff's Civil and Constitutional rights as guaranteed under the Civil Rights Act of 1871, 42 U.S.C. Section 1983, and the Fourth and Fourteenth Amendments to the United States Constitution by, among other things, causing Plaintiff to be arrested, causing him to be falsely imprisoned; and by subjecting said plaintiff to excessive and unnecessary force; and by subjecting him to the malicious abuse of criminal process.

43. As a result of plaintiff's false arrest and imprisonment, plaintiff has been caused to suffer humiliation, bodily pain, mental anguish, embarrassment, and loss of income, was prevented from attending to his necessary affairs, and has been caused to incur legal expenses, medical expenses and has been otherwise damaged.

SECOND CAUSE OF ACTION

44. Plaintiff reiterates paragraphs 1 through 43 and incorporate such by reference herein.

45. The policy and practice of the Defendant City violated the Plaintiff's rights as guaranteed under the Fourth and Fourteenth Amendments to the United States Constitution, the Civil Rights Act of 1871, 42 U.S.C. Section 1983.

46. Plaintiff suffered injuries and damages as a result of aforesaid actions and conduct.

THIRD CAUSE OF ACTION

47. Plaintiff reiterates paragraphs 1 through 46 and incorporate such by reference herein.

48. The Plaintiff was subjected to unnecessary and excessive force in violation of his rights under the Fourth Amendment to the United States Constitution and the Civil Rights Act of

1871, 42 U.S.C. Section 1983.

49. Plaintiff suffered injuries and damages as a result. As a proximate result of the acts of defendants, Plaintiff incurred expenses in procuring required medical care and treatment.

FOURTH CAUSE OF ACTION

50. Plaintiff reiterates paragraphs 1 through 49 and incorporate such by reference herein.

51. The Plaintiff was subjected to malicious prosecution in that he was arrested and charged, without probable cause, and subjected to criminal prosecution as a consequence thereof in violation of his rights under the Fourth Amendment to the United States Constitution and the Civil Rights Act of 1871, 42 U.S.C. Section 1983.

52. Plaintiff suffered injuries and damages as a result. As a proximate result of the acts of defendants, Plaintiff incurred expenses in procuring required medical care and treatment.

FIFTH CAUSE OF ACTION

53. Plaintiff reiterates paragraphs 1 through 52 and incorporates such by reference herein.

54. The actions and conduct of the Defendant Officers violated the rights of Plaintiff as guaranteed under the laws of the State of New York being that said Plaintiff was arrested without just or probable cause and without a warrant, and was falsely imprisoned, and subjected to abuse of the criminal process.

55. The defendant police officers acted under color of law, in their official capacity and their acts were performed under color of the statutes and ordinances, customs and practices of the City of New York.

56. Plaintiff suffered injuries and damages as a result of the unlawful arrest, false imprisonment and deprivation of his civil rights.

SIXTH CAUSE OF ACTION

57. Plaintiff reiterates paragraphs 1 through 56 and incorporate such by reference herein.

58. The Plaintiff was subjected to malicious prosecution in that he was arrested and charged, without probable cause, and subjected to criminal prosecution as a consequence thereof in violation of his rights under the laws of the State of New York.

59. That the plaintiff was wholly innocent of said charges and was forced by defendants to submit to Court proceedings. Plaintiff was arraigned on the aforesaid charges and thereafter subjected to criminal prosecution without probable cause.

60. Defendants commenced the criminal proceeding against plaintiff because of a wrong and improper motive other than a desire to see the ends of justice served.

61. The aforesaid criminal proceeding was commenced by reason of defendants' intentional, wanton, reckless and/or grossly negligent conduct.

62. That by reason of the said false arrest, detention and malicious prosecution, plaintiff was caused to suffer humiliation, bodily pain, mental anguish, embarrassment, and loss of income, loss of school time and work, was prevented from attending to his necessary affairs, and has been caused to incur legal expenses, medical expenses and has been otherwise damaged.

63. Plaintiff suffered injuries and damages as a result of aforesaid actions and conduct.

SEVENTH CAUSE OF ACTION

64. Plaintiff reiterates paragraphs 1 through 63 and incorporates such by reference herein.

65. Defendants were negligent, careless and reckless in depriving plaintiff of prompt and necessary medical treatment and attention for the severe irritation to his eyes caused by the mace sprayed into his eyes by the defendant officers.

66. Plaintiff suffered injuries and damages as a result. As a proximate result of the acts of defendants, Plaintiff incurred expenses in procuring required medical care and treatment.

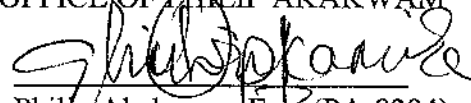
WHEREFORE, plaintiff prays the Court for judgment as follows against the defendants and each of them, jointly and severally:

- (a) Enter appropriate declaratory and injunctive relief.
- (b) Award Plaintiff appropriate compensatory and punitive damages in an amount to be defined and determined.
- (c) Award punitive damages against the defendant officers in an amount to be determined.
- (d) Award reasonable costs and attorney's fees in an amount to be determined.
- (e) Award such other and further relief as the Court deems appropriate and just.

Dated: Brooklyn, New York
May 23, 2007

LAW OFFICE OF PHILIP AKAKWAM

By:


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